

County Commissioners Meeting September 2nd 2025

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=PngASIL0-Dg
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Delaware County Commissioners Meeting Report

Meeting Date: September 2, 2025

Presiding Officer: Commissioner Brand

1. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** [00:00:35](#) Presiding Officer Commissioner Brand called the regular meeting of the Delaware County Commissioners to order at 9:00 a.m. on Tuesday, September 2, 2025.
- **Attendance:**
 - **Present:** Commissioner Brian (spelled as Ryan/Brian in roll calls), Commissioner Brand, Commissioner Henry, and Mr. Brook (County Attorney).
 - **Absent:** None noted.
 - **Presiding Officer:** Commissioner Brand.

2. Preliminary & Procedural Business

- **Ceremonial Openings:** [00:00:41](#) The meeting opened with the Pledge of Allegiance.
- **Employee of the Month:** [00:01:24](#) Chief County Probation Officer Allison Lighter was recognized as Employee of the Month for nearly 20 years of dedicated service to the

county justice center.

- **Appointments: 00:04:14** Jamie Bane (Health Department Administrator) presented a board recommendation to appoint **Lanetta Lee** to the Board of Health to restore a quorum and balance the board membership.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call recorded: Commissioner Brian - yes, Commissioner Brand - yes, Commissioner Henry - yes).
 - **Approval of Minutes: 00:11:12** Minutes from the August 18th meeting were considered with corrections submitted by Commissioner Henry and subsequently updated.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call recorded: Commissioner Regan - yes, Commissioner Brand - yes, Commissioner Henry - yes).
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3. Substantive Business & Board Action

- **00:06:37 Table of Business: IU Health Master Agreement**
 - **Sponsor / Presenter:** Commissioners / County Leadership.
 - **Deliberation Summary:** Discussion to remove and formally kill/terminate the current IU Health master agreement renewal request. Officials noted that an alternative fee-for-service care model from IU Health would save roughly \$84,500 annually, but pending agreements with Marathon Health made this termination preferable.
 - **Action & Vote Disposition:** Motion to remove from table and kill the renewal request passed unanimously by Voice Vote (Roll call recorded: Commissioner Regan - yes, Commissioner Brand - yes, Commissioner Henry - yes).
- **00:08:10 Yorktown Land Access Easement**
 - **Sponsor / Presenter:** Julie Bearing (3410 West Fox Ridge Lane).
 - **Deliberation Summary:** Request for a 100-foot-wide ingress/egress easement to access 600 West from a 109-acre property planned for future residential and commercial development, with INDOT access points already cleared. County Attorney reviewed the paperwork.
 - **Item-Specific Public Input:** Julie Bearing presented details regarding the 100-foot width sizing based on projected volume and dual frontage roads.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call recorded: Commissioner Brand - yes, Commissioner Regan - yes, Commissioner Henry - yes).
- **00:11:36 Property in Albany (613 North Broadway)**
 - **Sponsor / Presenter:** Commissioners / County Leadership.
 - **Deliberation Summary:** Discussion regarding a burned-out, unsafe housing property currently under a tax sale certificate. Proposed to convey/transfer the property to the Town of Albany on the condition that they demolish the structure.
 - **Action & Vote Disposition:** Tabled for further verification of tax sale listings and legal status by Voice Vote (Roll call recorded: Commissioner Brand - yes,

Commissioner Regan - yes, Commissioner Henry - yes).

- **00:13:28 Comprehensive Financial Plan (Baker Tilly Scope of Work)**
 - **Sponsor / Presenter:** Matt Kz (Delaware County Council) and Auditor Ed Carroll.
 - **Deliberation Summary:** Presentation of a scope of work from Baker Tilly aligned with the newly formed Strategic Financial Planning Committee. The plan covers long-term financial modeling, asset inventory/management, a capital improvement plan, bond rating establishment, and 2025 state legislative tax reform impacts. Bard and Company will partner at no upfront charge (paid only if debt is issued).
 - **Action & Vote Disposition:** Presented for informational purposes; formal approval scheduled for the September 15th meeting.
- **00:16:24 High-Tech Crimes Unit (HTCU) Contract Extension**
 - **Sponsor / Presenter:** Doug Zimmer (HTCU Director) and Eric Hoffman (Prosecutor).
 - **Deliberation Summary:** Request to extend the state-funded HTCU agreement covering 11 eastern Indiana counties. Prosecutor Hoffman highlighted how cell phone digital forensics have revolutionized criminal investigations, cutting evidence turnaround times from state police lab delays of 9-12 months down to 24 hours locally.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call recorded: Commissioner Brand - yes, Commissioner Regan - yes, Commissioner Henry - yes).
- **00:23:43 Comcast Agreement (Mental Health Facility Firewall)**
 - **Sponsor / Presenter:** Jim Fluke (IT Department).
 - **Deliberation Summary:** A 36-month enterprise firewall agreement for the new mental health facility at \$293/month plus a \$550 installation fee. This installation is a mandatory prerequisite to pass life-safety inspections and secure a Certificate of Occupancy.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call recorded: Commissioner Regan - yes, Commissioner Brand - yes, Commissioner Henry - yes).
- **00:26:01 Otis Elevator Maintenance Agreement**
 - **Sponsor / Presenter:** Don Chambers (Superintendent of Maintenance) and Jim Fluke (IT).
 - **Deliberation Summary:** Transitioning elevator maintenance from Murphy Elevator (covering 3 elevators at \$867.69/month) to Otis Elevator (covering 4 elevators including health department, justice center, and county buildings at \$664/month), yielding an annual savings of \$2,442. Legal counsel noted concerns regarding liquidated damages language.
 - **Action & Vote Disposition:** Approved by Voice Vote *pending contract negotiations regarding liquidated damages language* (Roll call recorded: Commissioner Brand - yes, Commissioner Henry - yes).
- **00:31:00 Justice Center Roof Repair**
 - **Sponsor / Presenter:** Don Chambers (Superintendent of Maintenance).

- **Deliberation Summary:** Review of three roof repair quotes to fix ongoing leaks above the property room and replace two drains. ANS Roofing submitted a quote of \$37,950 with a 20-year Carlisle full warranty and no required HVAC shutdowns, outperforming competing bids that required costly duct removal.
 - **Action & Vote Disposition:** Approved by Voice Vote *pending legal review of contract terms* (Roll call recorded: Commissioner Brian - yes, Commissioner Brand - yes, Commissioner Henry - yes).
- **00:36:23 Brook Source Agreement (County Engineer Placement)**
 - **Sponsor / Presenter:** Commissioners / County Leadership.
 - **Deliberation Summary:** Agreement for hiring the newly selected county engineer (starting September 29th) with a flat recruiter binder fee of \$20,000 rather than the standard 20% commission.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call recorded: Commissioner Brand - yes).
- **00:37:23 INDOT Right-of-Way Contract (Eaton Albany Pike Bridge)**
 - **Sponsor / Presenter:** County Leadership.
 - **Deliberation Summary:** Standard INDOT 80/20 cost-share right-of-way contract for reconditioning and resurfacing the bridge on Eaton Albany Pike over Reese Ditch (Union Township), scheduled for 2028. Total max cost is \$13,484 (county responsible for 20%).
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call recorded: Mr. Brand - yes).
- **00:38:37 Property Request (Nate Howard)**
 - **Sponsor / Presenter:** Commissioners.
 - **Deliberation Summary:** Presenter not present.
 - **Action & Vote Disposition:** Tabled by Voice Vote (Roll call recorded: Commissioner Regan - yes, Commissioner Brand - yes).
- **00:39:52 Interim HR Support Agreement**
 - **Sponsor / Presenter:** Commissioners.
 - **Deliberation Summary:** Following the announced retirement of HR Director Pam, three staffing options were reviewed. Staffmark presented Josh Jarvis via an existing Omnia municipal vendor agreement at \$31/hour plus fees (\$43.40/hour total), available immediately for 24<U+2013>32 hours/week while long-term applications are evaluated.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call recorded: Commissioner Brand - yes, Commissioner Regan - yes, Commissioner Henry - yes).
- **00:42:09 Marathon Health Clinic Agreement**
 - **Sponsor / Presenter:** Commissioners & Benefits Consultants (Marsh McLennan / McGriff).
 - **Deliberation Summary:** Following an August 21st site visit, the board evaluated transitioning employee health clinic services from IU Health to Marathon Health.

Marathon's utilization-blended pricing structure projects annual clinic costs of \$139,050 compared to IU Health's \$500,000 flat fee (a potential \$360,000 apples-to-apples savings). Additional services like DOT physicals and medication formularies were discussed.

- **Action & Vote Disposition:** Approved by Voice Vote *pending legal review of an updated formal contract* (Roll call recorded: Commissioner Brand - yes, Commissioner Regan - yes, Commissioner Henry - yes).
- **00:48:25 Delaware County Metropolitan Plan Commission Interlocal Agreement**
 - **Sponsor / Presenter:** Kylene / Commissioners.
 - **Deliberation Summary:** Renewal of an interlocal agreement with the City of Muncie committing an annual sum of \$25,000 (paid semi-annually in March and September) toward the salary of the executive director of the Muncie-Delaware County Metropolitan Plan Commission.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call recorded: Commissioner Brand - yes, Commissioner Regan - yes, Commissioner Henry - yes).
- **00:50:20 American Tower Audit Lease Amendment Request**
 - **Sponsor / Presenter:** John Brook (County Attorney).
 - **Deliberation Summary:** Review of a lease amendment for county communication towers at the highway garage (7700 West Jackson). Attorney Brook requested time to review conflicting historical lease documents and negotiate terms closer to standard rates.
 - **Action & Vote Disposition:** Tabled by Voice Vote (Roll call recorded: Commissioner Brand - yes, Commissioner Regan - yes, Commissioner Henry - yes).
- **00:52:23 Ordinance 2025-17: Heart of Indiana United Way Community Resilience Grant Fund**
 - **Sponsor / Presenter:** Emily Anderson (Court Administrator) & Nikki Bosan (CASA Director).
 - **Deliberation Summary:** Establishment of non-reverting fund #9218 to properly account for multi-year United Way grant funds previously misallocated into a donation fund. Funds are strictly earmarked for CASA volunteer and employee mileage.
 - **Action & Vote Disposition:**
 - Introduction: Approved by Voice Vote (Roll call recorded: Commissioner Brand - yes, Commissioner Regan - yes, Commissioner Henry - yes).
 - Suspension of Rules: Approved by Voice Vote.
 - Adoption: Approved by Voice Vote (Roll call recorded: Commissioner Brand - yes).
- **00:56:04 Ordinance 2025-18: Family Recovery Court Grant Fund**
 - **Sponsor / Presenter:** Emily Anderson (Court Administrator).
 - **Deliberation Summary:** Establishment/reactivation of alternating fund #8193 for the Family Recovery Court Grant to comply with state accounting transparency rules

and incorporate correctly into upcoming 2026 budget hearings.

- **Action & Vote Disposition:**
 - Introduction: Approved by Voice Vote (Roll call recorded: Commissioner Regan - yes, Commissioner Brand - yes, Commissioner Henry - yes).
 - Suspension of Rules: Approved by Voice Vote (Roll call recorded: Commissioner Brand - yes, Commissioner Regan - yes, Commissioner Henry - yes).
 - Adoption: Approved by Voice Vote (Roll call recorded: Commissioner Regan - yes, Commissioner Brand - yes, Commissioner Henry - yes).
 - **00:61:24 Ordinance 2025-19: Traffic Weight Limits on County Roads**
 - **Sponsor / Presenter:** Highway Department / County Attorney.
 - **Deliberation Summary:** Establishment of a 6-ton weight limit on specific county roads (CR 400 South from CR to SR 32; CR 600 West from SR 67 to Yorktown limits; CR 700 West from SR 67 to SR 32; and CR 800 West from SR 67 to 400 South) to curb heavy commercial truck traffic cut-throughs. Agricultural operations and local delivery trucks are explicitly exempt.
 - **Action & Vote Disposition:** Introduction approved by Voice Vote (Roll call recorded: Commissioner Brand - yes, Commissioner Regan - yes, Commissioner Henry - yes).
 - **00:52:21 Resolution 2025-13: Employee in Responsible Charge (ERC) Designation**
 - **Sponsor / Presenter:** County Highway / Engineering.
 - **Deliberation Summary:** Formal resolution designating the Employee in Responsible Charge (ERC) with signing authority for local public agency (LPA) state and federal highway projects and bridge inspection programs.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call recorded: Unanimous/Affirmative vote).
 - **01:21:05 Payment of Claims**
 - **Claims Total:** \$1,78,516.50 (including State Board of Account fees, current buildings, wheel tax distributions, tax refunds, surveyor claims, road maintenance, and multiple TIF district payouts).
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call recorded: Commissioner Regan - yes, Commissioner Brand - no, Commissioner Henry - yes).
 - **ARP Claims Total:** \$166,594.40 (including departmental distributions).
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call recorded: Mr. Brand - yes, Commissioner Regan - yes).
 - **Payroll Total:** \$1,020,044.86.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call recorded: Commissioner Regan - yes, Commissioner Brand - yes, Commissioner Henry - yes).
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4. Open Public Comment / Citizen Forum

The board recessed briefly [01:24:11](#) and reconvened at [01:35:50](#) for public comment:

- [01:36:15](#) **Tiffany Krian** (6210 N. CR 600 West): Addressed the board regarding the lack of county residential ordinances regulating electrified fences after a neighbor installed an active electric fence immediately adjacent to her property line where small children play.
 - [01:40:01](#) **Chris Rudder** (Rudder Drainage, Randolph County): Spoke on agricultural tile mitigation and drainage planning protocols required during utility-scale solar installations.
 - [01:43:38](#) **Cheryl Swingley** (Delaware County resident): Voiced opposition to potential fossil fuel natural gas power plant proposals and urged support for utility-scale solar energy and farmer property rights.
 - [01:46:47](#) **Ryan Richards** (10191 W. 1200 North, Gaston): Expressed concerns regarding long-term agricultural tile damage caused by solar pile driving and the broader economic impacts of solar projects on land values and cash rents.
 - [01:50:14](#) **Mara Hoff** (DeFur Voran, 400 S. Walnut St.): Commented on legal inconsistencies within the Property Value Guarantee (PVG) and surety bond sections of the amended solar ordinance, requesting clarity or referral back to the plan commission.
 - [01:53:31](#) **Mark Kreps** (1611 N. Tillson Ave.): Offered volunteer grant-writing services to assist the county in securing historical preservation funding to restore the historic William Hill Cabin at the county fairgrounds.
 - [01:57:32](#) **Mike Johnson** (11701 N. CR 200 West): Voiced strong support for the proposed solar ordinance restrictions, arguing that industrial solar projects harm rural aesthetics and agricultural land.
 - [02:00:00](#) **Allan Goble** (3401 W. CR 750 North): Expressed support for the plan commission's recommended solar ordinance and urged the commissioners to adopt it.
 - [02:06:06](#) **Kim Meyer** (1130 W. Royerton Rd.): Thanked commissioners for standing up for residents and supporting the revised solar ordinance setbacks and protections.
 - [02:03:47](#) **Joe Russell** (3501 E. Center North, Eaton): Argued against micro-managing solar projects through excessive setbacks and PVGs, urging the county to honor good-faith contracts signed under the original ordinance.
 - [02:07:30](#) **Linda Hansen** (League of Women Voters): Spoke in favor of utility solar energy and requested that the county honor existing good-faith contracts established by farmers under the previous ordinance.
 - [02:09:30](#) **Tim Hines** (Carpenters Union): Highlighted the economic benefits, apprenticeship opportunities, and local job creation generated by commercial and renewable energy construction projects.
 - [02:12:30](#) **Steven Hines** (276 South Ave.): Commended the Plan Commission's thorough 4-hour review process and 8-1 favorable vote on the solar ordinance, urging the commissioners to approve it.
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5. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - Commissioner Brand announced an upcoming town hall meeting scheduled for **September 11th at 6:30 p.m. in Albany.**
 - Reminded all departments of the September 7th deadline for mandatory “Know Before” cybersecurity training, emphasizing that non-compliant staff risk losing system credentials.
 - Read a complimentary letter from residents John and Hope Newbie praising the highway department’s tree-trimming crew for exceptional work along County Road 100 North.
 - Emergency Management Director John Carmichael and Deputy Director Corey Kissick presented an update on the newly completed **White River Mile Marker Project**, installing DNR emergency river mile markers from Yorktown to Daleville integrated directly into Delaware County 911 CAD mapping systems.
- **Adjournment:** 02:16:27 Motion to recess/adjourn passed unanimously by voice vote following closing remarks and welcoming Commissioner Henry back from his medical recovery.

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